

Garib Das v. State of U.P. and Others

Allahabad High Court · Division Bench · 7 June 2012 · Writ-C No. 29852 of 2012 · **Three instalments under cl. 6.14; recovery stayed; disconnection to be finalised**

HEADNOTE

On a writ against a recovery citation for Rs. 50,575 of electricity arrears, the High Court applied paragraph 6.14 of the U.P. Electricity Supply Code, 2005 and directed payment of outstanding bills in three equal instalments, stayed recovery pending timely deposits, waived 50% of collection charges on punctual payment, and directed the Executive Engineer to finalise the petitioner's pending permanent-disconnection application within 15 days.

FACTUAL SUMMARY

The petitioner had a domestic electricity connection at village Salarpur, district Mahoba. After shifting to Mahoba city from 2009, he applied on 15.12.2009 to the Executive Engineer for permanent disconnection of the village connection. The application was not processed and bills continued in his name. A recovery citation dated 29.02.2012 was issued for Rs. 50,575. He sought quashing of the citation, a direction to decide the disconnection application, and leave to pay arrears in instalments, pleading poverty and that bills were never served at his city address.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for consumers in financial distress

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer or any officer higher in rank to grant an instalment facility to consumers in financial distress. Where arrears are admitted and the licensee does not object, the Court may schedule payment in three equal instalments, waive half the collection charges on timely deposit, stay recovery pending those deposits (with default restoring the right to recover the whole), and require the Executive Engineer to finalise a pending application for permanent disconnection. ¶ 5-8

PRINCIPLE TAGS

installment-payment-clause-6.14 On a writ against a recovery citation for Rs. 50,575 of electricity arrears, the High Court applied paragraph 6.14 of the U.P.. ¶ 5-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS RAISED AFTER THE 15.12.2009 PERMANENT-DISCONNECTION APPLICATION, OR THE RECOVERY CITATION ITSELF, WERE ILLEGAL FOR NON-USE OF SUPPLY

The petitioner alleged non-use and non-processing of disconnection; the Court treated arrears as payable and granted instalments without examining that plea. ¶ 3,5